

केन्द्रीय सूचना आयोग
Central Information Commission
बाबा गंगनाथ मार्ग, मुनिरका
Baba Gangnath Marg, Munirka
नई दिल्ली, New Delhi – 110067

File No:

CIC/AWBIC/C/2024/613009
CIC/AWBIC/C/2024/613308
CIC/AWBIC/C/2024/613460
CIC/AWBIC/C/2024/613514
CIC/AWBIC/C/2024/616133
CIC/AWBIC/C/2024/616035
CIC/AWBIC/C/2024/616036
CIC/AWBIC/C/2024/616084
CIC/AWBIC/C/2024/616972
CIC/AWBIC/C/2024/617049
CIC/AWBIC/C/2024/618356
CIC/AWBIC/C/2024/619488
CIC/AWBIC/C/2024/621161
CIC/AWBIC/C/2024/621162
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CIC/AWBIC/C/2024/623207
CIC/AWBIC/C/2024/623211
CIC/AWBIC/C/2024/623205
CIC/AWBIC/C/2024/623206
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CIC/AWBIC/C/2024/625652
CIC/AWBIC/C/2024/625881
CIC/AWBIC/C/2024/634234
CIC/AWBIC/C/2024/635380
CIC/AWBIC/C/2024/640159
CIC/AWBIC/C/2024/647154

Naresh Kadyan

....शिकायतकर्ता/Complainant

VERSUS
बनाम

The CPIO

....प्रतिवादीगण /Respondent

Animal Welfare Board of India,
Ministry of Fisheries, Animal Husbandry And Dairying,
NIAW Campus, 42 Mile Stone,
Delhi-Agra Highway, NH-2,
Ballabhgarh, Haryana-121004

Date of Hearing : 30.04.2026
Date of Decision : 08.05.2026

INFORMATION COMMISSIONER : SANJEEV KUMAR JINDAL

The above-mentioned Complaints are clubbed together as the Complainant & respondents are common and subject-matter is similar in nature and hence are being disposed of through a common order.

Relevant facts emerging from Complaints:

Sno	Case No	Date of RTI	CPIO Reply	First Complaint Dated	FAA Order	Complaint Dated
1	613009	11.01.2024	18.01.2024	08.02.2024	N.A	01.04.2024
2	613308	13.01.2024	10.02.2024	13.02.2024	14.03.2024	02.04.2024
3	613460	16.01.2024	10.02.2024	14.02.2024	NA	03.04.2024
4	613514	14.01.2024	10.02.2024	14.02.2024	NA	03.04.2024
5	616133	29.01.2024	28.02.2024	02.03.2024	NA	18.04.2024
6	616035	29.01.2024	28.02.2024	02.03.2024	NA	19.04.2024
7	616036	29.01.2024	28.02.2024	02.03.2024	NA	19.04.2024
8	616084	30.01.2024	28.02.2024	02.03.2024	NA	19.04.2024
9	616972	09.02.2023	06.03.2023	11.03.2023	12.04.2023	25.04.2024
10	617049	30.01.2024	28.02.2024	02.03.2024	NA	25.04.2024
11	618356	16.02.2024	13.03.2024	16.03.2024	16.04.2024	03.05.2024
12	619488	25.02.2024	13.03.2024	24.03.2024	25.04.2024	10.05.2024
13	621161	02.03.2024	27.03.2024	04.04.2024	25.04.2024	20.05.2024
14	621162	02.03.2024	28.03.2024	04.04.2024	10.05.2024	20.05.2024
15	622229	24.04.2023	18.05.2023	28.05.2023	03.07.2023	28.05.2024
16	623207	15.03.2024	13.04.2024	14.04.2024	10.05.2024	03.06.2024
17	623211	15.03.2024	17.04.2024	15.04.2024	10.05.2024	03.06.2024
18	623205	14.03.2024	13.04.2024	14.04.2024	10.05.2024	03.06.2024
19	623206	14.03.2024	12.04.2024	14.04.2024	25.04.2024	03.06.2024
20	623210	16.03.2024	13.04.2024	15.04.2024	10.05.2024	04.06.2024
21	623652	20.03.2024	17.04.2024	18.04.2024	04.06.2024	18.06.2024
22	625881	03.04.2024	01.05.2024	02.05.2024	04.06.2024	20.06.2024
23	634234	23.05.2024	22.06.2024	22.06.2024	05.08.2024	09.08.2024
24	635380	24.05.2024	23.06.2024	24.06.2024	05.08.2024	21.08.2024
25	640159	23.06.2024	22.07.2024	24.07.2024	NA	10.09.2024
26	647154	05.08.2024	02.09.2024	09.09.2024	NA	25.10.2024

1. Complaint- CIC/AWBIC/C/2024/613009

Information sought:

The Complainant filed an RTI application on 11.01.2024 seeking the following information:

*“XX
Whereas F. No. 11-4/2000/CZA, dated 7/10-12-2001, circulated the decision, removal of common animals from display in zoo, identifying 20 species, still these animals are not removed, besides FSSAI notified as meat animals, fit to slaughter for human consumption as diet.*

Hence,

- 1. Supply complete list with present status, species - gender - age wise, copies of all recognized establishments with the AWBI and CZA, are removed meat animals - performing animals from the display of public view, entering with ticket, and rest animals in captivity, registered with AWBI, as they are not exempted, restoring their five freedoms, along with adopted animals. Association of Zoos and Aquariums (WAZA).*
- 2. Status reports of all Complaints lodged with action taken, copies needed to follow up.*
- 3. Coordination between CZA, AWBI, APEDA, FSSAI, NTCA, NBA with WCCB, supply copies.*
- 4. Complete list and copies of exemption under section 22 of PCA Act, 1960, related to display as performing animals in Zoo.”*

The CPIO furnished a reply to the Complainant on 18.01.2024 stating as under:

“1 and 2 - The information sought is not clear.

3-The information sought is not available with the Board.

4-The Central Government has notified for ban on use of performing animals vide letter dated 14.10.1998 which is available on the website www.awbi.gov.in.”

Being dissatisfied, the Complainant filed a First Appeal 08.02.2024. The FAA order is not available on the record.

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

2. Complaint- CIC/AWBIC/C/2024/613308

Information sought:

The Complainant filed an RTI application on 13.01.2024 seeking the following information:

“Supply pointwise compliance of section 9, 10, 38 and 38A, in writing with present status of subordinate Rules, uploaded as per India Code online:

- 1. Functions of AWBI, points A to I,*
- 2. Powers to make Regulations, complete list and details.*
- 3. Rules under 38, 1 to 3, including point 2(a to I), along with 38A, each and everything as per provisions, before both houses of Parliament.”*

The CPIO furnished a reply to the Complainant on 10.02.2024 stating as under:

“1 to 3- The CPIO can provide those information which are on record and not supposed to create any document for the purpose of providing information. Hence, the RTI request is not in accordance with the Section 2 f of the RTI Act, 2005. Hence, the information sought is not available with the Board.”

Being dissatisfied, the Complainant filed a First Appeal 13.02.2024. The FAA vide its order on 14.03.2024 stated as under:

“The information communicated by the CPIO is in order. The applicant cannot contest that the information is misleading. The AWBI is not mandated to maintain whatever information sought by any applicant which is not the mandate of AWBI.”

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

3. Complaint- CIC/AWBIC/C/2024/613460

Information sought:

The Complainant filed an RTI application on 16.01.2024 seeking the following information:

“Supply complete details about the Animal Birth Control for all species, other than human beings, except dogs.

Central Monitoring and coordinating Committee:

The Central Monitoring and Coordinating Committee shall be constituted with many members, likewise State level and so on, supply complete list of all type of Monitoring and coordinating Committee, and their members contributions towards animals, treating as living creature instead goods, introducing special vehicles, under Animal Birth Control Rules 2023.

Supply complete details and point wise compliance of all terms and conditions of ABC Rules, 2023.

Central Monitoring and coordinating Committee for rest of animals, except dogs, including cattle- cow and their calves, especially males: supply complete list of all type of Monitoring and coordinating Committee, and their members contributions towards animals, treating as living creature instead goods, introducing special vehicles, under Animal Birth Control Rules 2023.”

The CPIO furnished a reply to the Complainant on 10.02.2024 stating as under:

“The CPIO can provide those information which are on record and not supposed to create any document for the purpose of providing information. Hence, the RTI request is not in accordance with the Section 2 f of the RTI Act, 2005. Hence, the information sought is not available with the Board.”

Being dissatisfied, the Complainant filed a First Appeal on 14.02.2024. The FAA order is not available on the record.

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

4. Complaint- CIC/AWBIC/C/2024/613514

Information sought:

The Complainant filed an RTI application on 14.01.2024 seeking the following information :

“XX
XXXX

Whereas, Extracts of some Paras of Supreme Court order dated 18.5.2023 in WP (C) No. 23 of 2016 and AWBI endorsed orders passed in SLP (C) No.11686 of 2007: Chapter 7.1.2 of the guidelines of OIE, recognizes five internationally recognized freedoms for animals, such as: freedom from hunger, thirst and malnutrition / freedom from fear and distress / freedom from physical and thermal discomfort / freedom from pain, injury and disease and freedom to express normal patterns of behavior.

Veterinary Council of India Standard of Professional Conduct, Etiquette and Code of Ethics, for Veterinary Practitioners Regulations, 1992. As per section 3: Declaration and oath by a Veterinarian: Being admitted to the profession of veterinary medicine:

- 1. I solemnly swear to use my scientific knowledge and skills for the benefit of society through the protection of animal health, the relief of animal suffering, the conservation of livestock resources, the promotion of public health, and the advancement of knowledge in veterinary science.*
- 2. I shall practice my profession conscientiously, with dignity, and in keeping with the principles of veterinary medical ethics.*
- 3. I accept as a lifelong obligation the continuous improvement of my professional knowledge and competence.*

Supply point wise strict compliance, as stated above.

Supply action taken on the People for Animals at Ahmedabad, animal shelter cum dog jail at Zundal in Gandhinagar District by the Gujarat State Animal Birth Control Implementation and Monitoring Committee, along with the Animal Welfare Board and Secretary, Society for Prevention of Cruelty to Animals, Office of Deputy Director of Animal Husbandry, Gandhinagar. Supply complete list of dogs captured, rescued and rehabilitated along with all facilities available, keeping in view, Guidelines for Animal Shelters with regard to Veterinary facilities, which were badly violated, breaching public trust. Naresh Kadyan, Master Trainer in Animal Welfare to Govt. of India”

The CPIO furnished a reply to the Complainant on 10.02.2024 stating as under:

“The CPIO can provide those information which are on record and not supposed to create any document for the purpose of providing information. Hence, the RTI request is not in accordance with the Section 2 f of the RTI Act, 2005. Hence, the information sought is not available with the Board.

The Complaint received against People for Animals; Ahmedabad is under investigation.”

Being dissatisfied, the Complainant filed a First Appeal on 14.02.2024. The FAA order is not available on the record.

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

5. Complaint- CIC/AWBIC/C/2024/616133

Information sought:

The Complainant filed an RTI application on 29.01.2024 seeking the following information:

“Supply strict compliance, while 100 Camels of BSF, shifting Rajasthan to Delhi, keeping in view, leg tied position, amounts to be cruelty against Camels: Section 33 of the Border Security Force Act, 1968:

Injury to property –

Any person subject to this Act who commits any of the following offences, that is to say, -

- (a) destroys or injures any property mentioned in clause (a) of section 32, or any property belonging to any Force mess, band or institution, or to any person subject to this Act or*
- (b) commits any act which causes damage to, or destruction of, any property of the Government by fire or*
- (c) kills, injures, makes away with, ill-treats or loses any, animal entrusted to him, shall, on conviction by a Security Force Court, be liable, if he has acted willfully to suffer imprisonment for a term which may extend to ten years or such less punishment as is in this Act mentioned and if he has acted without reasonable*

excuse, to suffer imprisonment for a term which may extend to five years or such less punishment as is in this Act mentioned.

It was a matter of record, that Union Minister of Home Affairs, confirming the transport mechanism of these camels, before the Rajya Sabha, as on 8-12- 2010, while replying question No. 420:

(a) and (b): BSF has not transported camels for Rajasthan to Delhi for Republic Day celebrations in a cruel manner.

(c) Camels are transported from Rajasthan to Delhi in connection with Republic Day celebrations as per standard norms/practice. The following procedure is strictly adhered to by BSF while transporting camels in vehicles:

While transporting camels in trucks to cover long distances, they are loosely tied with soft rope to avoid any possible injury, keeping in mind their comfort.

Supply AWBI - Delhi Animal Welfare Board and concerned DSPCA with Delhi Police, copies of action taken during Animal Welfare Fortnight 2024."

The CPIO furnished a reply to the Complainant on 28.02.2024 stated as under:

"The AWBI has issued a circular regarding the celebration of the Animal Welfare Fortnight and Vasanth panchmi. The copy of the circular is available on the website www.awbi.gov.in. However the Board has not received any report on celebration of Animal Welfare Fortnight 2024 from Delhi Animal Welfare Board and Delhi SPCAs. Hence the information sought is not available with the Board."

Being dissatisfied, the Complainant filed a First Appeal on 02.03.2024. The FAA Order is not available on the record.

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the instant Complaint

6. Complaint- CIC/AWBIC/C/2024/616035

Information sought:

The Complainant filed an RTI application on 29.01.2024 seeking the following information :

“XXX
References: Animal Welfare Fortnight 14-30 January, 2024.

Halal versus haram: Cruel animal transportation as goods, breaching public trust, violating section 47 of IPC, read with section 2 and 3 of the Prevention of Cruelty to Animals Act, 1960 and article 51A of Indian Constitution.

- 1. Regulate halal transportation of animals, towards Delhi under section 10 of the Prevention of Cruelty to Animals Act, 1960, educating community under section 9(k) of said Act.*
- 2. Regulate Central Motor Vehicle (Eleventh Amendments) Rules, 2015 and Central Motor Vehicle (13th Amendment) Rules, 2016, read with the Indian Standards: Transport of Livestock - Code of Practice.*
- 3. Strict compliance of Rule 3 of the Veterinary Council of India Standard of Professional Conduct, Etiquette and Code of Ethics, for Veterinary Practitioners Regulations, 1992.*
- 4. STOP discrimination, ensuring compliance of section 2(d) of the Prevention and Control of Infectious and Contagious Diseases in Animals Act, 2009: compulsory vaccination means vaccination of any animal against any scheduled disease in respect of which vaccination is made mandatory under the provisions of this Act.*

Supply compliance as stated above, with Camels in the captivity of Border Security Force, participated in Republic Day Parade at Kartavya Path, as on 26-1-2024, which seems to be shifted as goods, without pre-transport permit, as required under Rule 96 of Transport of Animals Rules, 1978, amended in 2001 and 2009, along with Standing Orders 31 of 2022 of Delhi Police: Issue of certificate before transportation - BSF 100 Camels brought to Delhi, to take part in Republic Day Parade at Kartavya Path, adopting cruelty against them in non-approved goods transport vehicles, violating Delhi Police Standing order No. 31 of 2022, reading with section 33 of BSF Act, 1968 with orders passed by the Supreme and Delhi High Court, restoring their 5 freedoms, and they are being shifting back from Delhi to Rajasthan, adopting same cruel method of leg tied, which violate law, supply compliance.”

The CPIO furnished a reply to the Complainant on 28.02.2024 stating as under:

“The information sought is not available with the Board. The CPIO can provide only those information which are on record and not supposed to create any document for the purpose of providing information. Hence, the RTI request is not in accordance with the Section 2(f) of the RTI Act, 2005.”

Being dissatisfied, the Complainant filed a First Appeal on 02.03.2024. FAA Order is not available on the record.

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

7. Complaint- CIC/AWBIC/C/2024/616036

Information sought:

The Complainant filed an RTI application on 29.01.2024 seeking the following information :

“XX

Supply the copies of all communications and replies along with concerned file notings, rules and regulations, related to all exemptions and certificate issued, compliance of 5 freedoms for animals, related to all animals including BSF camels.

Supply the copies of authority, as claim, NRCC frame SOP for Camel Transportation, without pre-transport permit, and non-approved vehicle to transport Camels, owned by BSF.

Supply the copies of exemptions to BSF, violating section 33 of BSF Act, 1968, read with the orders passed by the Constitutional Bench of Supreme Court of India, along with animal transportation mechanism as adopted by AWBI.

Supply all copies of compliance and exemptions to BSF Camels, related to:

Declaration of Camels as the state animal of Rajasthan in 2014, the government came out with the Rajasthan Camel (Prohibition of Slaughter and Prohibition of Temporary Migration or Export Regulations) Act in 2015 to prohibit its temporary migration out of Rajasthan. Supply all copies of communications between NRCC and AWBI - BSF. Supply strict compliance of Rule 3 of the 5. Veterinary Council of India Standard of Professional Conduct, Etiquette and Code of Ethics, for Veterinary Practitioners Regulations, 1992.”

The CPIO furnished a reply to the Complainant on 28.02.2024 stating as under:

“The information has already been provided in the various RTIs and the said matter was discussed in the CIC hearings.”

Being dissatisfied, the Complainant filed a First Appeal on 02.03.2024. FAA Order is not available on the record.

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

8. Complaint- CIC/AWBIC/C/2024/616084

Information sought:

The Complainant filed an RTI application on 31.01.2024 seeking the following information:

“Faridabad Municipal Corporation, Smart City Faridabad, have no legal slaughterhouse, to maintain demand and supply, besides it, stray cattle and dogs, became burden and liability on public funds, public nuisance as well, all around, 10-kilometer radius, from the head office of AWBI, stray cow eat polythene and garbage, on dumping ground of MCF openly, so called dairy owners with silent consent of public servants, holding berth in MCF and Smart City, AWBI as well.

XX

Supply complete details, and copies of relevant record, animals treated, handled and admitted, in the above facility, during Animal Welfare Fortnight2024.

Supply complete details, and copies of relevant record, animals treated, handled and admitted, in the following facility, during Animal Welfare Fortnight, since last 11 years, Head wise expenditure as well, including medicines:

- A). Animal Hospital - 928.327 square meter:*
- B). OT for big animals: 666.87 square meter*
- C). Dog shed: 72.00 square meter*

-
- D). Cat shed: 12.02 square meter
 - E). Birds shed: 30.00 square meter
 - F). Wild animals: 40.00 square meter
 - G). Large animals: 150.00 square meter

Supply report on present status of above said facility, cum Infirmary, may not declared by the Government invited audit para.”

The CPIO furnished a reply to the Complainant on 28.02.2024 stating as under:

“The Board has forwarded the Complaint received from Shri Naresh Kadyan regarding stray animals to the Municipal Commissioner, Faridabad Municipal Corporation and Member Secretary, Haryana Animal Welfare Board and DG, AHD, Govt. of Haryana for taking further appropriate action.

Further, it is stated that the information sought viz., treatment of animals etc. during the Animal Welfare Fortnight 2024 is not available with the Board.”

Being dissatisfied, the Complainant filed a First Appeal on 02.03.2024. FAA Order is not available on the record.

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

9. Complaint- CIC/AWBIC/C/2024/616972

Information sought:

The Complainant filed an RTI application on 09.02.2023 seeking the following information:

*“XXX
AWBI: a toothless advisory establishment without sufficient manpower with double standards and discrimination, as animals are being treated with goods terms, camel has no transportation mechanism, whereas Army, Police and para military owned animals, does not have welfare mechanism, hence supply all copies with educational advisory issued under section 9(k) and*

regulations under section 10 of PCA Act, 1960, may be supplied, keeping in view, AWBI claimed many qualities and recognitions of cow and Complaint to celebrate Cow Hug Day, on 14-2-2023, supply scientific proof as claimed, in AWBI communication, bearing No. 3-4/2021-22/PCA, dated 6-2-2023, which is being issued, after due approval and direction of Department, supply copy of both approval and directions.

Further supply, point wise compliance of Cow freedoms, along with prototype of cow transportation, as approved by Transport Department

(i) freedom from hunger, thirst and malnutrition

(ii) freedom from fear and distress

(iii) freedom from physical and thermal discomfort

(iv) freedom from pain, injury and disease and

(v) freedom to express normal patterns of behaviour.”

The CPIO furnished a reply to the Complainant on 06.03.2023 stated as under:

“Ref : Online RTI application No. AWBIC/R/E/23/00022 dated 09.02.23

With reference to the above cited subject, the following information is furnished hereunder:

Ans. 1: The advisories and circulars issued by the Board are available in the website: www.awbi.gov.in

Ans.2: The circular no.3-4/2021-22/PCA dated 6-2-2023 was issued on the directions of the Department of Animal Husbandry and Dairying.

Ans.3: The Central Government has enacted the Transport of Animals Rules, 1978 last amended in 2001 and 2009) including transport of cattle in a humane manner.”

Being dissatisfied, the Complainant filed a First Appeal on 11.03.2023. The FAA vide its order on 12.04.2023 stated as under:

“Ref: :1) Online RTI application No. AWBIC/R/E/23/00022 dated 09.02.2023

2) This office letter of even number dated 07.03.2023

3) Your RTI Complaint application no. AWBIC/A/E/23/00024 dated 11.03.2023

This Complaint has been presented by Shri Naresh Kadyan for not furnishing information by Central Public Information Officer of Animal Welfare Board of India. Complainant has sought information from Animal Welfare Board of India through Central Public Information Officer vide letter no, 25-59/2022-23/RTI dated 07.03.2023.

I have read the contents of the Complaint; RTI original application of the Complainant; and also the records of the matter presented before the undersigned. The Central Public Information officer of the Board has furnished relevant information to Complainant in time. Since the requisite information has been furnished without delay the Complaint is accordingly disposed of”.

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

10. Complaint- CIC/AWBIC/C/2024/617049

Information sought:

The Complainant filed an RTI application on 07.02.2023 seeking the following information:

“Animal Welfare Fortnight was closed, as per AWBI but public servants of AWBI, refused to accept Animal Welfare Fortnight report, as desired by the Chairman of AWBI, this matter be taken up with higher ups, Bhavesh Tomar a public servant, intimated that directions has been given at Senior level not to accept any communications, which is against the integrity of a public servant, besides Tomar defamatory allegations as FIR has been lodged against Naresh Kadyan, which has been cancelled and counter FIR has been lodged against Sujit Kumar Datta, for concealing facts, lodging false and fabricated, bogus FIR with bad intention, alerted by Sidharth Malhan to Bhavesh Tomar.

Supply all copies of orders, directions may be supplied as claimed by Bhavesh Tomar, a public servant of AWBI, before Sidharth Malhan, who visited AWBI office, to submit Animal Welfare Fortnight report.

Supply action taken reports of all Complaints lodged by Naresh Kadyan with AWBI and against Gazipur slaughterhouse, haram versus halal."

The CPIO vide its order on 28.02.2024. (Copy of CPIO order is not available on the record)

Being dissatisfied, the Complainant filed a First Appeal on 02.03.2024. FAA Order is not available on the record.

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the instant Complaint

11. Complaint- CIC/AWBIC/C/2024/618356

Information sought:

The Complainant filed an RTI application dated 16.02.2024 seeking the following information:

*"XX
XXX*

All male and female Elephants, and other performing animals, owned by Circuses, Bonafide zoo, as per recognized list of AWBI and CZA, as attached for ready references, these heritage animals are disappeared without any intimation, permission of AWBI and CZA, even violated section 38H of Wildlife Protection Act, 1972, and Performing Rules, 2001, breaching public trust being criminal conspiracy, involving public servants, holding berths in AWBI and CZA. Whereas all animals seem to be dead, disposed off without protocol.

Prayers: Look out notice issued to submit report of their existence:

- 1. AWBI, to submit status report of all performing animals, with circus.*
- 2. CZA, to submit status report of all Elephants, with circus.*
- 3. WCCB, status report of all performing animals, with circus.*

Report within 15 days with complete details of sex and species of animals, restoring their 5 freedoms, with present status, as per Hippo of Asiad circus. Supply complete list and details with species

and sex wise, performing animals, with all establishments, including-

1. Circus recognised at present, with details of animals, describing their skills and compliance of all terms and conditions.
2. Present status of all performing animals rescued - adopted from all establishments including circuses.
3. Complete list of Circuses registered with AWBI, as per Performing Animal Rules, 1973 with present status of all animals.
4. Complete list of Circuses registered with AWBI, as per Performing Animal Rules, 2001 with present status of all animals.
5. Complete list and details of animals died in the premises of all establishments, including circuses."

The CPIO furnished a reply to the Complainant on 13.03.2023 stating as under:

"1) It is informed that the elephants are protected under Wildlife Protection Act. 1972. The Central Zoo Authority is authorized to issue registration of Wild Animals used under Section 38H of the said Act. AWBI had registered the elephants as performing animal under Rule 7(2) of the Performing Animals (Registration) Rule 2001 based on the Prior registration of Section 38H of the WLPA 1972. Further it is stated that all the elephants which were registered under Section 38H were cancelled by the CZA in 2016. Presently there are no elephants registered with the circus as on date.

1 and 4 - As on date, 6 Circuses are registered with the AWBI. The details of animals are attached.

3- No circus is registered with AWBI under Performing Animal Rules, 1973 as on date.

2 and 5- The information sought has not been maintained."

Being dissatisfied, the Complainant filed a First Appeal on 16.03.2024. The FAA vide its order dated 16.04.2024 stated as under:

"Ref: :1) RTI application no. AWBIC/R/T/24/00019 dated /6.02.2024

2) Online reply was given on 13.03.2024

3) RTI Complaint no.AWBIC/A/E/24/00028 dated 16.03.2024

This Complaint has been presented by Shri Naresh Kadyan for not furnishing information by Central Public Information Officer of Animal Welfare Board of India. In this regard, it is stated that the Central Public Information Officer of Animal Welfare Board of India has furnished the reply of RTI online on 13.03.2024.

2) I have read the contents of the Complaint; RTI original application of the Complainant; and also the records of the matter presented before the undersigned.

3) The information sought was provided online on 13.03.2024. However, it is informed that CPIO can provide those information which are on record and not supposed to issue clarification or create any document for the purpose of providing information.

4) The Complaint stands disposed off.”

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

12. Complaint: CIC/AWBIC/C/2024/619488

Information sought:

The Complainant filed an RTI application dated 25.02.2024 seeking the following information :

*“XX
Supply complete details and list of annual reports of AWBI, since beginning till date, along with personal inspections of relevant records and all schedules 1 to 25, maintained by AWBI, to prepare and issue of WHITE PAPER, keeping in view, expenditure and payments, besides the sanctioned post, their duties and functions with their service conditions.*

Because all Balance Sheets of AWBI, are defective, attracting AWBI mandate, duties and functions, hurting my religious feelings and believes, being criminal conspiracy with bad intentions.”

The CPIO furnished a reply to the Complainant on 13.03.2023 stating as under:

“The information sought regarding the Annual Reports of AWBI is available in the website- www.awbi.gov.in

The staff details are also uploaded and available in the website- www.awbi.gov.in”

Being dissatisfied, the Complainant filed a First Appeal on 24.03.2024. The FAA vide its order dated 25.04.2024 stated as under:

“The information provided by the CPIO is in order. The information sought under the application is available in the public domain. The applicant should ask for the specific information against the schedule prepared by AWBI. The applicant may also inspect the record personally with the prior intimation to the CPIO before 5 working days. Hence, the Complaint stands disposed off.”

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

13. Complaint- CIC/AWBIC/C/2024/621161

Information sought:

The Complainant filed an RTI application dated 02.03.2024 seeking the following information :

*“XX
XXOrders passed in SLP (C) No. 11686 of 2007, clarified vide Supreme Court order dated 18.5.2023 in WP (C) No. 23 of 2016, read with Delhi High Court verdict in W.P.(C) 2316/2017. Supreme Court of India, direction in CWP No. 309 of 2003, on dated 27-8-2013, read with the Compendium prepared. Supply AWBI, copies of all communications, and all replies, obtained by AWBI, with other Departments.*

The CPIO furnished a reply to the Complainant on 27.03.2024 stating as under:

“ Ref: RTI application AWBIC/R/E/24/00031dated 02.03.2024

With reference to the above-cited subject, the following information is furnished hereunder;

Ans. The information sought by the applicant is not clear. The applicant to seek information on the specific questions so as to enable the Board to provide the information."

Being dissatisfied, the Complainant filed a First Appeal 04.04.2024. The FAA vide its order on 25.04.2024 stated as under:

"I have gone through the Complaint submitted by the applicant. It is observed that the information sought is vague in nature. Further, this information is not maintained at the office of the AWBI. Hence, the Complaint stands disposed off."

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

14. Complaint- : CIC/AWBIC/C/2024/621162

Information sought:

The Complainant filed an RTI application on 02.03.2024 seeking the following information :

"Supply certified copies of AWBI, letters to Palwal Police, related to FIR No. 149 of 2020, including report of AWBI Legal subcommittee, in compliance of AWBI 48th AGM:

- 1. F. No. 23-72/2002-AWD, on dated 31-1-2019, 26-4-2023 and 21-3-2023 and so on, as attached.*
- 2. Legal Adviser report, keeping in view, 48th Annual General Meeting of the Animal Welfare Board of India held on 4th May 2017 at Indira Paryavaran Bhawan, New Delhi, reproduced as below:*

The Board directed the office to send the details, report received from District Administration regarding the organization of Shri Naresh Kadyan (referred in item No.8 of ATR) to the Legal Sub-Committee of the Board for its advice for further action. Whereas, Report was accepted by AWBI, conveyed vide letter No. F. No. 23-72/2002-AWD, on dated 31-1-2019 - MOEAF-E-2018-01731, when all matters of UCs, related to PFA Haryana, which were over 15 years, as per item 8 of 47th AGM of AWBI: The Board also suggested that Utilisation Certificates pending for over 15 years back should be waived off with a copy to District Administration, organization, Ministry and Member of Board.

3. Supply all copies of letters, asking to lodge FIRs against Master Trainer in Animal Welfare to Govt. of India - Naresh Kadyan, retired Commissioner of BSG Haryana and Member, State Committee for Slaughter Houses, Haryana, with bad intention of a public servant, claimed to be Dr. Sujit Kumar Dutta, Secretary AWBI, supply all copies of replies, including letters of 16-6-2020.
4. All copies of action taken against Dr. Sujit Kumar Dutta, Secretary AWBI, false framing vide letter 16-6-2020, concealing as stated above, besides Sujit Kumar Dutta, Secretary AWBI, was booked by the Police Station at Mundkati in Palwal, vide kalandra No. 17, dated 17-3-2023, for the violation of 182 IPC:

XX

5. Copies of annual property return for last 10 years, related to:

1. Sujit Kumar Datta.
2. Ms. Prachi Jain.
3. Bharat
6. Complete head wise details, related to recurring grant in aid, sanctioned -disbursed, for the scheme of Shelter, including PFA Haryana.
7. Copies of action taken and recovery, against People for Animals Delhi, run and managed by Gautam Grover under cover Menka Gandhi, along with Anuradha Sawhney ambulance.”

The CPIO furnished a reply to the Complainant on 28.03.2024 stating as under:

“With reference to the above-cited subject, the following information is furnished hereunder:-

Ans.1 and 2: This is a statement of facts and no information is sought in this question.

Ans.3: The letter dated 16.06.2020 is not available with the Board.

Ans.4: The information sought is not available with the Board.

Ans.5: Dr. S. K. Dutta is not an employee of the AWBI handling the charge of AWBI. Thus, the same is not available with the Board.
The details of the property of Prachi Jain and Bharat are as below:

Sl. No.	Name	Details of Property
1.	Prachi Jain	1 flat in Delhi

2.	Bharat	1 land in Vellore, TN
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Ans.6 and 7: The information sought is beyond the retention period.

Being dissatisfied, the Complainant filed a First Appeal on 04.04.2024. The FAA vide its order on 10.05.2024 stated as under:

"The Complaint filed by Shri Naresh Kadyan has been examined. The CPIO cannot provide information which is not maintained as records. The CPIO has provided the information as available with him. Hence, no more information can be made available to the applicant. Therefore, the Complaint stands disposed off."

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

15. Complaint- CIC/AWBIC/C/2024/622229

Information sought:

The Complainant filed an RTI application on 24.04.2023 seeking the following information :

*"XX
XXX*

Animal Welfare Party: Cow species in distress, during BJP regime, supply:

- 1. Complete details, head year wise amount incurred and list related to regulate the birth control of street - stray - abandoned and unclaimed animals, like dog.*
- 2. Complete details, head year wise amount incurred and list related to regulate the birth control of street - stray - abandoned and unclaimed animals, like male cow calves and bulls.*
- 3. Complete details of Beef and veal export, along with halal certification by APEDA.*
- 4. Complete list of APEDA affiliated cold storage, slaughter houses and meat shops, all around India.*
- 5. Complete details of right to life, legal rights - freedoms of animals, are being violated and action taken by all*

enforcement agencies, including AWBI, State AWBs and DSPCAs, all over India.”

The CPIO furnished a reply to the Complainant on 18.05.2023 stating as under:

“1 and 2- The details of grant-in-aid released to the recognised Animal Welfare organisations including Gaushalas for welfare of stray and abandoned animals in the last five years is attached.

3 and 4- The information sought is not available with the Board.

5- The AWBI regularly issue advisories and circular to the concerned Government department, Animal Welfare Organisations and others for proper implementation of PCA Act, 1960 and Rules made thereunder with the view of preventing unnecessary pain or suffering to animals generally and to uphold the 5 freedoms of the animals including Bulls referred by the Supreme Court of India.

In addition to the above, the AWBI regularly advises Central Government for amendment of existing Rules and other issues pertaining to the animal welfare to prevent unnecessary pain or suffering to the animals.

The AWBI also forward the Complaints of cruelty and grievance to the State Governments to take action against the offenders for violation of PCA, Act, 1960 as per law. The Board had issued a circular letter dated 14.08.2020 to Chief Secretary and Director General of Police of all the State Governments and UTs regarding harassment to the people showing compassion to animals, also to take matter pertaining to the proper implementation of PCA, Act, 1960.

The AWBI is also regularly coordinating with the association or bodies established for the purpose of preventing unnecessary pain or suffering to animals or for the protection of animals and birds. Also, conduct training programs for Honorary Animal Welfare Representatives. The Board also conducts Humane education programs.”

Being dissatisfied, the Complainant filed a First Appeal 28.05.2023. The FAA vide its order on 03.07.2023 stated as under:

"Ref. 1) RTI application no. AWBIC/R/E/23/00055 dated 24.04.2023

2) Online reply was given on 18.05.2023

3) RTI Complaint no. AWBIC/A/E/23/00052 dated 28.05.2023

This Complaint has been presented by Shri Naresh Kadyan for not furnishing information by Central Public Information Officer of Animal Welfare Board of India. In this regard, it is stated that the Central Public Information Officer of Animal Welfare Board of India has furnished the reply of RTI through online dated 18.05.2023.

2) I have read the contents of the Complaint; RTI original application of the Complainant; and also the records of the matter presented before the undersigned.

3) The information sought was provided online on 18.05.2023 through online. However, it is informed that CPIO can provide those information which are on record and not supposed to issue clarification or create any document for the purpose of providing information."

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

16. Complaint- CIC/AWBIC/C/2024/623207

Information sought:

The Complainant filed an RTI application on 15.03.2024 seeking the following information :

*"XX
Supply complete details, with head wise disbursement, and status of UC, inspection reports, as desired-
Find attached herewith a list of AWOs, grant in aid sanctioned as disbursed, conflict of interest, as People for Animals- PFA, Ashok Vihar - Delhi, obtained grant in aid, of 11,25,000/- Plus 11,25,000/- for shelter, without land, and Sumo Ambulance, which was sold-*

out by her. without returning funds back to the Government, whereas another grant in aid for Ruth Cowell Foundation (Sanjay Gandhi Animal Care Centre), for 2,47,500/- and PFA Delhi at Sadhrana, for 9,33,750/, hence misuse of public funds, under the scheme of Provision of Shelter House for looking after the Animals, hence supply complete details, related to all above said AWOs, head wise sanction, disbursement and utilization with present status of all AWOs, as PFA Delhi disappeared, funds were mutualized, with the criminal conspiracy of Menka Gandhi gang. Hanuman Vatika land sold out. Supply each and everything in the list attached as desired above.”

The CPIO furnished a reply to the Complainant on 13.04.2024 stating as under:

“The list of financial assistance released along with the status of Utilization Certificate pending in respect of the recognized animal welfare organizations under the Scheme of Regular Grant, Rescue Cattle Grant, Shelter Grant, Ambulance Grant, ABC grant and Natural Calamity grant is available on public domain and is available in AWBI website.”

Being dissatisfied, the Complainant filed a First Appeal on 14.04.2024. The FAA vide its order on 10.05.2024 stated as under:

“The Complaint filed by Shri Naresh Kadyan has been examined. The CPIO cannot provide information which is not maintained as records. The CPIO has provided the information as available with him. The Board is implementing the schemes since 2004. Therefore, the information sought is beyond the retention period i.e 20 years. If the applicant identify the specific information, the same can be provided if it is available.”

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

17. Complaint- CIC/AWBIC/C/2024/623211

Information sought:

The Complainant filed an RTI application on 15.03.2024 seeking the following information :

*“XX
Supply complete details and list of annual reports of AWBI, since beginning till date, along with personal inspections of relevant records and all schedules 1 to 25, maintained by AWBI, to prepare and issue of WHITE PAPER, keeping in view, expenditure and payments, besides the sanctioned post, their duties and functions with their service conditions.
Because all Balance Sheets of AWBI, are defective, attracting AWBI mandate, duties and functions, hurting my religious feelings and believes, being criminal conspiracy with bad intentions.”*

The CPIO furnished a reply to the Complainant on 17.04.2024 stating as under:

*“The information sought regarding the Annual Reports of AWBI is available in the website- www.awbi.gov.in
The staff details are also uploaded and available in the website- www.awbi.gov.in This information was already provided in RTI No.AWBIC/R/E/24/00028 on 13.03.2024.”*

Being dissatisfied, the Complainant filed a First Appeal on 15.04.2024. The FAA vide its order on 10.05.2024 stated as under:

“The Complaint filed by Shri Naresh Kadyan has been examined. The CPIO are in order. As the information’s are available in the public domain. Regarding verification of records, the applicant to indicate the specific record to be verified for which he may visit the office with prior intimation to the CPIO in advance (before 5 working days). Hence, the Complaint is disposed off.”

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

18. Complaint- CIC/AWBIC/C/2024/623205

Information sought:

The Complainant filed an RTI application on 14.03.2024 seeking the following information :

“XX
XX

Supply action taken reports on the oath sworn by Mr. Sujit Kumar Dutta, accused of kalandara No. 17, dated 17-3-2023, with Police Station, Mundkati Palwal, concealing actual reports, with bad intention, without bail.

Supply all copies of replies and reports, related to Ghazipur Slaughter House, in Delhi, along with haram process of animal transportation, read with Whereas, Administration failed to perform, as stated below:

1. Central Motor Vehicle (Eleventh Amendments) Rules, 2015 and Central Motor Vehicle (13th Amendment) Rules, 2016, read with the Indian Standards: Transport of Livestock - Code of Practice and pre-transport permit.

2. Discrimination, and contradictions, ensuring compliance of section 2(d) of the Prevention and Control of Infectious and Contagious Diseases in Animals Act, 2009: compulsory vaccination means vaccination of any animal against any scheduled disease in respect of which vaccination is made mandatory under the provisions of this Act.”

The CPIO furnished a reply to the Complainant on 13.04.2024 stating as under:

“The information sought is not available with the Board. The CPIO can provide those information which are on record and not supposed to create any document for the purpose of providing information. Hence, the RTI request is not in accordance with the Section 2 f of the RTI Act, 2005. Hence, the information sought cannot be provided.”

Being dissatisfied, the Complainant filed a First Appeal on 14.04.2024. The FAA vide its order on 10.05.2024 stated as under:

“The Complaint filed by Shri Naresh Kadyan has been examined. The CPIO cannot provide information which is not maintained as records. The CPIO has provided the information as available with

him. Hence, no more information can be made available to the applicant. Therefore, the Complaint stands disposed off."

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

19. Complaint- CIC/AWBIC/C/2024/623206

Information sought:

The Complainant filed an RTI application on 14.03.2024 seeking the following information :

"MINUTES OF THE 47th ANNUAL GENERAL MEETING OF ANIMAL WELFARE BOARD OF INDIA HELD ON 20TH and 21ST FEBRUARY 2016 AT CHENNAI: Item No.8:

Consideration of matter relating to latest status report of Utilization Certificate under Regular Grant and CSS Grant (Shelter, Ambulance, ABC & Natural Calamity):

The Board also suggested that Utilisation Certificates pending for over 15 years back should be waived off with a copy to District Administration, organization, Ministry and Member of Board.

Supply complete details and list, as per above decision, head wise disbursement, and present status of AWOs, still working or not.

Supply complete list, details with Notification, related to Gautam Grover as special invite of AWBI.

Supply complete details, head wise, TA and DA, claimed and paid by Dr. Sandeep Jain, as Member of AWBI, since beginning till date, likewise Mr. Sri Krishan Mittal, claimed as prefixing Dr before his name, I doubt his degree, supply copies of his degree, and TA - DA claimed and disbursed, since beginning till date."

The CPIO furnished a reply to the Complainant on 12.04.2024 stating as under:

*"XXX
XXX*

Ans .: The information sought regarding the present status of AWOs of AWBI is available on the public domain the same can be obtained from the AWBI website: www.awbi.gov.in.

The copy of the letter inviting Shri Gautam Grover as special invitee is not clear. The applicant is requested to provide exact date of meeting for providing the information.

The details of TA/DA reimbursed to Dr. Sandeep Jain and Dr. S.K.Mittal during the last five years is attached. Moreover, it is informed that the copy of the degree of Dr. S.K. Mittal is not available with the Board."

Being dissatisfied, the Complainant filed a First Appeal on 14.04.2024. The FAA vide its order on 25.04.2024 stated as under:

"The undersigned has examined the Complaint filed by the applicant. The CPIO can provide those documents or those information which is available on record. The CPIO not supposed to create information as per the provision of the Act. Hence, the CPIO has provided the information which was on record. The Complaint stands disposed off."

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

20. Complaint- CIC/AWBIC/C/2024/623210

Information sought:

The Complainant filed an RTI application on 16.03.2024 seeking the following information :

*"XX
XX Find attached herewith a list of AWOs, grant in aid sanctioned as disbursed, conflict of interest, as People for Animals- PFA, Ashok Vihar - Delhi, obtained grant in aid, for setting up, under Provision of Ambulance for the animals in distress, hence misuse of public funds, under the scheme of Provision of Ambulance for the animals in distress, hence supply complete details, related to all above said AWOs, head wise sanction, disbursement and utilization with present status of all AWOs, as PFA Delhi disappeared, funds were mutualized, with the criminal conspiracy of Menka Gandhi gang.*

PFA Delhi Animal Farm, Manav Gau Sadan sold out, temporary embezzlements of public funds, breaching public trust, violating IPCs being criminal conspiracy.

Supply each and everything in the list attached as desired above. Supply Copies of camel transportation Rules, keeping in permission granted by AWBI, camel as performing animals, Jumbo Circus and Great Indian Circus, status of Complaint lodged, 80 CPC notice issued.”

The CPIO furnished a reply to the Complainant on 13.04.2024 stating as under:

“The list of financial assistance released along with the status of Utilization Certificate pending in respect of the recognized animal welfare organizations under the Scheme of Regular Grant, Rescue Cattle Grant, Shelter Grant, Ambulance Grant, ABC grant and Natural Calamity grant is available on public domain and is available in AWBI website.

The Camel Transportation Rules are under consideration of the Government. The Board has not given any performing animals registration certificate of the Camels to Jumbo Circus and Great Indian Circus.”

Being dissatisfied, the Complainant filed a First Appeal on 15.04.2024. The FAA vide its order on 10.05.2024 stated as under:

“The Complaint filed by Shri Naresh Kadyan has been examined. The CPIO reply is in order. As the information’s are available in the public domain. So far camel matter is concerned, the CPIO has provided has provided those information which are maintained on record. The CPIO cannot clarify any issue or policy intervention under RTI Act, 2005. Accordingly, the Complaint stands disposed off”

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

21. Complaint- CIC/AWBIC/C/2024/625652

Information sought:

The Complainant filed an RTI application on 20.03.2024 seeking the following information :

“Supply complete list and details with all communications made and received, related to 19 March 2024 - Public Notice regarding

ban on dangerous dog breeds, along with the minutes of meetings, agenda placed, along with letter dated 12-3-2024, addressed to all Chief Secretary by OP Chaudhary. Supply complete details along with agenda and minutes - approval of PASC, with application, related to all 6 Circuses, registered by the AWBI, especially 2 Circuses have Camel outside their natural habitat, which is Gujarat and Rajasthan. Supply action taken reports on the Complaints lodged, related to Camels, including BSF camels. Supply latest report, omitting camel as performing animals, with transporting rules and regulation. Supply Leg tied loading and unloading, travelling as well, which is claimed by a BSF, in their communications, and questions and replies in Parliament, supply copies with present status of permission granted under Prevention of Cruelty to Animals (Animal Husbandry Practices and Procedures) Rules, 2023."

The CPIO furnished a reply to the Complainant on 17.04.2024 stating as under:

"The information sought regarding ban on dangerous dog breeds is not available with the Board. The same may be obtained directly from Department of Animal Husbandry and Dairying.

The information regarding agenda and minutes - approval of PASC related to 6 circuses is not maintained specifically. The application and other details of the circuses are the third party information and can only be provided on receipt of information from the concerned circuses.

No specific details of the Complaint were mentioned, hence, unable to provide information.

Information sought regarding omitting camel as performing animals is not available. Information sought regarding statement claimed by BSF is not available with the Board.

The information sought regarding Prevention of Cruelty to Animals (Animal Husbandry Practices and Procedures) Rules, 2023 is not available with the Board. The same may be obtained directly from Department of Animal Husbandry and Dairying."

Being dissatisfied, the Complainant filed a First Appeal on 18.04.2026. The FAA vide its order on 04.06.2024 stated as under:

"The Complaint filed by Shri Naresh Kadyan has been examined. The CPIO reply is in order. The CPIO can provide those information

which are available on record. The CPIO cannot create information. Hence, the information provided are sufficient. The Complaints stands disposed off."

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

22. Complaint- CIC/AWBIC/C/2024/625881

Information sought:

The Complainant filed an RTI application on 03.04.2024 seeking the following information :

"Community Policing as scouting in good faith for Camels, domesticated by Indian Army, and paramilitary Forces, like BSF, in the presence of Brand Ambassador Viyana Berwal: Supply complete details, question - replies before Indian Parliaments, related to CAMEL transportation, without rules and regulations, related to:

- 1. Standard Operating Procedure (SOP).*
- 2. Copies of all communications received and made.*
- 3. Camel Van, proposal and approval with present status.*
- 4. Copies of the Prevention of Cruelty to Animals (Transport of animals) Rules, 2020, as claimed by public servant, holding berth in BSF as Commandant at Jodhpur, along with the approval - gazette Notification of the Government.*
- 5. Copies of the Prevention of Cruelty to Animals (Target of animal) Rules, 2020, as claimed by public servant, holding berth in BSF as Commandant at Jodhpur, along with the approval - gazette Notification of the Government.*
- 6. Camels are being transported by a private goods transport vehicle, supply complete list and numbers of vehicles, along with copy of tender being public document.*
- 7. Complete details about NOC - Pre-transport permit obtained by BSF, from RTO - RTA- NHAI- AWBI - NRCC and Rajasthan State Animal Husbandry Department, as per Rule 96 of the Transportation of Animals Rules, 1978, amended in 2001 and 2009.*
- 8. Copies of exemptions obtained by BSF, to breach public trust, violating the Delhi Police Standing order No. 31 of 2022.*
- 9. Copies of exemptions obtained by BSF, to breach public trust, committing contempt of court of law: CWP No. 309 of 2003,*

upheld 5 freedoms for animals, 27-8-2013 mechanism endorsed by a Supreme Court.

- 10. Copies of exemptions obtained by BSF, to breach public trust, contempt of judicial advisory, endorsed but Constitutional Bench of Supreme Court,*
- 11. Leg tied loading and unloading, travelling as well, which is claimed by a BSF, in their communications, and questions and replies in Parliament, supply with present status of permission granted under Prevention of Cruelty to Animals (Animal Husbandry Practices and Procedures) Rules, 2023.*
- 12. Copies of strict compliance of oath sworn in by all veterinarians, as per Rule 3 of Veterinary Council of India Standard of Professional Conduct, Etiquette and Code of Ethics, for Veterinary Practitioners Regulations, 1992.*
- 13. Strict compliance of the Rajasthan camel (prohibition of slaughter & regulation of temporary migration or export) act, 2015.*
- 14. Restoration of 5 freedoms for camels, keeping in view, section 33 of the BSF Act, 1968 and all exceptions obtained, applied and granted, along with copies of State Animal Welfare Board, Delhi and Rajasthan.”*

The CPIO furnished a reply to the Complainant on 01.05.2024 stating as under:

“1 to 3, 5 to 14- The information sought is not available with the Board.

4. The matter regarding Prevention of Cruelty to Animals (Transport of Animals) Rules, 2020 is under consideration in the Ministry.”

Being dissatisfied, the Complainant filed a First Appeal d02.05.2024. The FAA vide its order on 04.06.2024 stated as under:

“The Complaint filed by Shri Naresh Kadyan has been examined. The CPIO reply is in order. The CPIO can provide those information which are available on record. The CPIO cannot create information. Hence, the information provided are sufficient. The Complaints stands disposed off”

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

23. Complaint- CIC/AWBIC/C/2024/634234

Information sought:

The Complainant filed an RTI application on 23.05.2024 seeking the following information :

“Supply pointwise strict compliance of the:

- 1. Food Safety and Standards (Food Products Standards and Food Additives) Regulation, 2011*
- 2. Food Safety and Standards (Licensing and Registration of Food Businesses) Regulation, 2011*
- 3. Food Safety and Standards (Prohibition and Restriction of Sales) Regulation, 2011*
- 4. Streamlining of Halal Certification Process for Meat and Meat Products.*

Supply strict compliance of:

- 1. Judicial Advisory of Constitutional Bench of Supreme Court related 5 freedoms. Compendium issued in CWP 309 of 2003, of Supreme Court.*
- 2. Rule 3 of the Veterinary Council of India Standard of Professional Conduct, Etiquette and Code of Ethics, for Veterinary Practitioners Regulations, 1992*
- 3. Regulatory Compliances for Slaughterhouses and Meat Shops by AWBI*
- 4. Prevention of Cruelty to Animals (Animal Husbandry Practices and Procedures) Rules, 2023.*
- 5. Section 2(d) of the Prevention and Control of Infectious and Contagious Diseases in Animals Act, 2009: Compulsory vaccination means vaccination of any animal against any scheduled disease in respect of which vaccination is made mandatory under the provisions of this Act.*
- 6. Central Motor Vehicle (Eleventh Amendments) Rules, 2015 and Central Motor Vehicle (13th Amendment) Rules, 2016, read with the Indian Standards:
Transport of Livestock - Code of Practice and pre-transport permit - Rule 96 of Transport of Animals Rules, 1978, amended in 2001 and 2009.*
- 7. Introduce animal abuser registry. Installation of animal scanner.*

-
8. *Action against the animal owners who are straying their cattle on the roads inflicting cruelty to animals, as per advisory, issued by the AWBI.*
 9. *Discrimination and contradiction:*
 - A). *IPC 47, read with section 2(18) of Municipal Corporation Act, 1994.*
 - B). *Section 2 and 3 of Prevention of Cruelty to Animals Act, 1960.*
 - C). *Section 2 of Carriage by Road Act, 2007.*
 - D). *Copies of Feasibility of all 30 Slaughterhouses in Mewat."*

The CPIO furnished a reply to the Complainant on 22.06.2024 stating as under:

"Ans 1 to 9 - The information sought is not available with the Board. The CPIO can provide only those information which are on record and not supposed to create any document for the purpose of providing information. The Animal Welfare Board of India has issued several advisories and circulars regarding the implementation of the Prevention of Cruelty to Animals Act 1960 and its Rules and the same are available in the website www.awbi.gov.in"

Being dissatisfied, the Complainant filed a First Appeal on 22.06.2024. The FAA vide its order on 05.08.2024 stated as under:

"The undersigned has examined the Complaint filed by the applicant. The CPIO can only provide those documents or that information which are available on record. The CPIO is not supposed to create information as per the provision of the Act. Hence, the Complaint stands disposed off."

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

24. Complaint- CIC/AWBIC/C/2024/635380

Information sought:

The Complainant filed an RTI application on 24.05.2024 seeking the following information :

"As many as 44 petitions were moved by the MOWGLIAID ANIMAL WELFARE SOCIETY, claimed to be official website <https://mowgliaid.org> but not recognized and affiliated with the AWBI and AWBI was compelled to appear, through Advocate Mr. Arun Gosain, for respondent-AWBI in all cases, might be AWBI berth holders also appeared in person.

Now all 44 cases have been decided without any speaking orders as on 20-1-2024, defeated the purpose of petitions, may be in the interest of public."

- 1. Supply complete list of cases filed against AWBI and cases filed by AWBI, till beginning till today.*
- 2. Supply purpose of filing the cases as stated above, purpose solved or defeated.*
- 3. Supply complete list of head wise expenditure bear by the AWBI, from its own funds, and supply all copies of bills and TA-DA- Tour with dates of AWBI berth holders and public servants.*
- 4. Supply all copies of Advocate Mr. Arun Gosain, for respondent-AWBI in all 44 cases, along with public servants - Secretary - AWBI berth holders appeared in person, their TA- DA- Tour programme copies, along with purpose of filing all 44 cases, these are in public interest or personal.*
- 5. Supply complete details, and list of bills pending in pipelines, related to animal rights and their welfare.*
- 6. Supply complete details and list of bills prepared and placed on the floor of Indian Parliament by Mrs. Menka Gandhi, as MP and Minister, since beginning till today.*
- 7. Supply complete list and details of delegation of powers as required under section 34 and 36 of PCA Act,1960.*
- 8. Supply complete list and details of relaxation under section 27 of PCA Act,1960, including all Zoos in India.*
- 9. Complete details of mandate of NIAW and purpose of its establishments with present status, as purpose solved or defeated, along with complete list of training obtained batch wise with their present activities of all participants, animal benefited as well.*
- 10. Complete details and list of slaughterhouses, powers delegated with all reports, under Slaughterhouses Rules, 2010.*
- 11. Supply complete details and proposal, before the Government, to:*
 - 1. Replace the Prevention of Cruelty to Animals Act, 1960, amendments as well.*

2. Replace AWBI with the National Authority - Commission on animal welfare with judicial powers."

The CPIO furnished a reply to the Complainant on 23.06.2024 stating as under:

"Ans 1 The applicant has not provided any specific period of information sought. Hence the information sought is vague and not clear.

Ans 2, 6, 7, 8, and 11- The information sought is not available with the Board. The CPIO can provide only those information which are on record and not supposed to create any document for the purpose of providing information. Hence the RTI request is not in accordance with the Section 2f of the RTI Act 2005.

Ans 3 The legal fees provided to Shri Arun Gosain, Advocate on record is enclosed. No TA and DA was paid in this matter.

Ans 4 AWBI is respondent in all the 44 cases and has not filed as petitioner. Furthermore the information sought is not available with the Board. The CPIO can provide only those information which are on record and not supposed to create any document for the purpose of providing information.

Ans 5 The information is under consideration with the Ministry. No TA and DA was paid in this matter.

Ans 9 The information sought is not available with the Board. The same may be available with the Department of Animal Husbandry and Dairying.

Ans.10 The information sought is vague and not clear. However it is informed that the Board has not delegated any power under the Prevention of Cruelty to Animals Slaughter House Rules 2001 as amended in 2010.

*HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH -
MOGWLIAIDN SHREYA PAROPKARI and ORS. VS. STATE OF PUNJAB
and Ors*

*1. CIVIL WRIT PETITION- PUBLIC INTEREST LITIGATION NO. 190 of
2021*

2. CWP14172-2022

3. CWP14203-2022

4. CWP14204-2022

5. CWP14334-2022

6. CWP14344-2022

7. CWP14349-2022

8. CWP14354-2022

9. CWP14681-2022

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10. CWP14683-2022
 11. CWP14714-2022
 12. CWP14723-2022
 13. CWP14731-2022
 14. CWP14767-2022
 15. CWP15340-2022
 16. CWP15343-2022
 17. CWP15344-2022
 18. CWP15366-2022
 19. CWP15375-2022
 20. CWP15391-2022
 21. CWP15394-2022
 22. CWP15899-2022
 23. CWP15913-2022
 24. CWP15923-2022
 25. CWP15924-2022
 26. CWP15931-2022
 27. CWP15941-2022
 28. CWP15953-2022
 29. CWP15956-2022
 30. CWP15974-2022
 31. CWP16015-2022
 32. CWP7054-2022
 33. CWP14436-2022
 34. CWP14444-2022
 35. CWP14456-2022
 36. CWP19610-2022
 37. CWP14460-2022
 38. CWP19607-2022
 39. CWP21194-2022
 40. CWP21250-2022
 41. CWP21261-2022
 42. CWP21263-2022
 43. CWP22576-2022 and
 44. CWP21453-2022"

Being dissatisfied, the Complainant filed a First Appeal 24.06.2024. The FAA vide its order on 05.08.2024 stated as under:

"The undersigned has examined the Complaint filed by the applicant. The CPIO can only provide those documents or those information which are available on record. The CPIO is not supposed to create

information as per the provision of the Act. In this case, the CPIO has already provided the relevant information which are available on record. Hence, the Complaint stands disposed off."

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

25. Complaint- CIC/AWBIC/C/2024/640159

Information sought:

The Complainant filed an RTI application on 23.06.2024 seeking the following information :

*"XXX
XXX*

Supply complete details, action taken reports and communications, related to Bestiality, will be no offence in India, onwards 1-7-2024. Supply all recommendations and advice, related to Bestiality, being animal abuse as a tool of sex, political and publicity tools, pride as well

AWBI comments on:

BHARATIYA NYAYA SANHITA, 2023.

BHARATIYA NAGARIK SURAKSHA SANHITA, 2023.

BHARATIYA SAKSHYA ADHINIYAM, 2023.

As onwards 1-7-2024, keeping in view animals being living creatures, have 5 legal freedoms, instead food as diet for human consumption. Restore right to life with respect and dignity."

The CPIO furnished a reply to the Complainant on 22.07.2024 stating as under:

"The Board has forwarded the recommendations for inclusion of adequate animal protection provisions including Bestiality in Bharatiya Nyaya Sanhita, 2023 vide letter dated 30.10.2023 and 20.12.2023 to the Ministry. The copies of the same is enclosed."

Being dissatisfied, the Complainant filed a First Appeal 24.07.2024. The FAA Order is not available on the record.

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

26. Complaint- CIC/AWBIC/C/2024/647154

Information sought:

The Complainant filed an RTI application on 05.08.2024 seeking the following information :

- "1. Supply copies of all letters issued to the People for Animals (PFA) Haryana and all communications received from People for Animals (PFA) Haryana, since beginning till today, along with action taken on all references and file notings.*
- 2. Supply copies of all letters issued to the Naresh Kadyan and all communications received from Naresh Kadyan, since beginning till today, along with action taken on all references and file notings."*

The CPIO furnished a reply to the Complainant on 02.09.2024 stating as under:

"With reference to the above-cited subject, the following information is furnished hereunder:

Ans. 1. The information sought regarding PFA Haryana is not clear as there is no organization recognized in the name of "PFA Haryana". However, there are 9 organizations recognized by the Board under the name of "PFA" or "People for animal" in the state of Haryana. The details of the organization are available in the website of the Board.

Ans.2. The information sought is not maintained by the Board."

Being dissatisfied, the Complainant filed a First Appeal 09.09.2024. The FAA order is not available on the record.

Feeling aggrieved and dissatisfied, Complainant approached the Commission with the Complaint.

Relevant Facts emerged during Hearing:

The following were present: -

Complainant: Mr. Naresh Kadyan

Respondent: Ms. Prachi Jain, CPIO, Mr. Maheshbhai Chauhan, FAA

27.Proof of having served a copy of Complaints on the Respondent, while filing the same in CIC, is not available on record.

28.The Complainant *inter alia* submitted that in all the cases no proper replies has been given and he specifically quoted Case No. 621162 and 625881, in which no complete and satisfactory information was provided by the respondent CPIO. He submitted that the information was stated to be “not available” without any application of mind despite the fact that sought information was available and he had attached copy of same for the reference of the respondent CPIO. He also submitted that the records of the Animal Welfare Board are not properly maintained and updated on their website. It is also submitted that the AWBI is still shown as working under the Ministry of Environment and Forest despite the fact it was separated and now is under Ministry of Animal Husbandry. It was also submitted that in Case no. 621162 the respondent CPIO failed to transfer the RTI application to the appropriate public authority with respect to information on point 5 relating to Mr. S.K Dutta. He also submitted that he do not want any penal action against the respondent and requested that as he is unable to download replies of CPIO/FAA from online portal, hence CPIO may be directed to provide hard copies of online replies and orders of FAA. Further, he may be allowed inspection of the records relating to information sought in all his RTI applications.

No written submission is filed by the Complainant in support of his Complaints.

29.The respondent while defending their case *inter alia* submitted that replies had been furnished in all the RTI applications which are listed today for hearing. It was submitted that in most of the matters the queries raised by the Complainant are non-specific and in the nature of seeking clarification rather than “information” as defined under section 2(f) the RTI Act, 2005. It was also submitted that the CPIO is obligated to provide only such information as is available on record and cannot create, compile, or generate information that is not maintained. It was further submitted that First Appellate Authority orders were also passed in all these matters, upholding the replies of the CPIO.

Written submissions dated Nil filed by the respondent, FAA is taken on record which states as under:

SNo	CIC Hearing No.	Date of RTI	Date of Reply	Content of RTI	Content of Appeal Reply
1.	CIC/ AWBIC/C/ 2024/ 613009	11.01.2024	18.01.2024	1 and 2 - The information sought is not clear. 3-The information sought is not available with the Board. 4 The Central Government has notified for ban on use of performing animals vide letter dated 14.10.1998 which is available on the website www.awbi.gov.in	The information communicated by the CPIO is in order. The applicant cannot contest that the information is misleading. The AWBI is not mandated to maintain whatever information sought by any applicant which is not the mandate of AWBI.
2.	CIC/ AWBIC/C/ 2024/ 613308	13.01.2024	10.02.2024	1 to 3 - The CPIO can provide those information which are on record and not supposed to create any document for the purpose of providing information. Hence, the RTI request is not in accordance with the Section 2 f of the RTI Act, 2005. Hence, the information sought is not available with the Board.	The information communicated by the CPIO is in order. The applicant cannot contest that the information is misleading. The AWBI is not mandated to maintain whatever information sought by any applicant which is not the mandate of AWBI.
3.	CIC/ AWBIC/C/ 2024/ 613460	16.01.2024	10.02.2024	The CPIO can provide those information which are on record and not supposed to create any document for the purpose of providing information. Hence, the RTI request is not in accordance with the Section 2 f of the RTI Act, 2005. Hence, the information sought is not available with the Board.	This appeal has been presented by shri Naresh Kadyan for not furnishing information by CPIO of AWBI. In this regard, it is stated that the CPIO of AWBI has furnished the reply online on 10.02.2024. I have read the contents of the Appeal; RTI original application of the Applicant and also the records of the matter presented before the undersigned The information sought was provided online on 10.02.2024. However, it is informed that CPIO can provide those information which is on record and not supposed to issue clarification or create an document for the purpose of providing

					information. The Appeal stands disposed off.
4.	CIC/ AWBIC/C/ 2024/ 613514	14.01.2024	10.02.2024	The CPIO can provide those information which are on record and not supposed to create any document for the purpose of providing information. Hence, the RTI request is not in accordance with the Section 2 f of the RTI Act, 2005. Hence, the information sought is not available with the Board. The complaint received against People for Animals, Ahmedabad is under investigation.	This appeal has been presented by shri Naresh Kadyan for not furnishing information by CPIO of AWBI. In this regard, it is stated that the CPIO of AWBI has furnished the reply online on 10.02.2024. I have read the contents of the Appeal; RTI original application of the Applicant and also the records of the matter presented before the undersigned The information sought was provided online on 10.02.2024. However, it is informed that CPIO can provide those information which is on record and not supposed to issue clarification or create an document for the purpose of providing information. The Appeal stands disposed of.
5.	CIC/ AWBIC/C/ 2024/ 616035	29.01.2024	28.02.2024	The information sought is not available with the Board. The CPIO can provide only those information which are on record and not supposed to create any document for the purpose of providing information. Hence, the RTI request is not in accordance with the Section 2(f) of the RTI Act, 2005.	This appeal has been presented by shri Naresh Kadyan for not furnishing information by CPIO of AWBI. In this regard, it is stated that the CPIO of AWBI has furnished the reply online on 28.02.2024. I have read the contents of the Appeal; RTI original application of the Applicant and also the records of the matter presented before the undersigned The information sought was provided online on 28.02.2024. However, it is informed that CPIO can provide those information which is on record and not supposed to issue clarification

					or create an document for the purpose of providing information. The Appeal stands disposed off.
6.	CIC/ AWBIC/C/ 2024/ 616036	29.01.2024	28.02.2024	The information has already been provided in the various RTIs and the said matter was discussed in the CIC hearings	This appeal has been presented by shri Naresh Kadyan for not furnishing information by CPIO of AWBI. In this regard, it is stated that the CPIO of AWBI has furnished the reply online on 28.02.2024 I have read the contents of the Appeal; RTI original application of the Applicant and also the records of the matter presented before the undersigned. The information sought was provided online on 28.02.2024. However, it is informed that CPIO can provide those information which is on record and not supposed to issue clarification or create an document for the purpose of providing information. The Appeal stands disposed off.
7.	CIC/ AWBIC/C/ 2024/ 616084	30.01.2024	28.02.2024	The Board has forwarded the complaint received from Shri Naresh Kadyan regarding stray animals to the Municipal Commissioner, Faridabad Municipal Corporation and Member Secretary, Haryana Animal Welfare Board and DG, AHD, Govt. of Haryana for taking further appropriate action. Further, it is stated that the information sought viz., treatment of animals etc. during the Animal Welfare Fortnight 2024 is not available with the Board.	This appeal has been presented by shri Naresh Kadyan for not furnishing information by CPIO of AWBI. In this regard, it is stated that the CPIO of AWBI has furnished the reply online on 28.02.2024. I have read the contents of the Appeal; RTI original application of the Applicant and also the records of the matter presented before the undersigned. The information sought was provided online on 28.02.2024. However, it is

					informed that CPIO can provide those information which is on record and not supposed to issue clarification or create an document for the purpose of providing information. The Appeal stands disposed off.
8.	CIC/ AWBIC/C/ 2024/ 616133	29.01.2024	28.02.2024	The AWBI has issued a circular regarding the celebration of the Animal Welfare Fortnight and Vasanth panchmi. The copy of the circular is available on the website www.awbi.gov.in. However, the Board has not received any report on celebration of Animal Welfare Fortnight 2024 from Delhi Animal Welfare Board and Delhi SPCAs. Hence the information sought is not available with the Board.	This appeal has been presented by shri Naresh Kadyan for not furnishing information by CPIO of AWBI. In this regard, it is stated that the CPIO of AWBI has furnished the reply online on 28.02.2024. I have read the contents of the Appeal; RTI original application of the Applicant and also the records of the matter presented before the undersigned. The information sought was provided online on 28.02.2024. However, it is informed that CPIO can provide those information which is on record and not supposed to issue clarification or create an document for the purpose of providing information. The Appeal stands disposed off.
9.	CIC/ AWBIC/C/ 2024/ 616972	09.02.2023	06.03.2023	The advisories and circulars issued by the Board are available in the website: www.awbi.gov.in Ans.2: The circular no.3-4/2021-22/PCA dated 6- 2- 2023 was issued on the directions of the Department of Animal Husbandry and Dairying. Ans.3: The Central Government has enacted the Transport of Animals Rules, 1978 (as amended in	This appeal has been presented by shri Naresh Kadyan for not furnishing information by CPIO of AWBI. Applicant has sought information from AWBI through CPIO vide letter no. 25-59/2022- 2023/RTI dated 06.03.2023 I have read the contents of the Appeal; RTI original application of the Applicant and also the records of the matter presented before the undersigned. The CPIO of

				2001 and 2009) including transport of cattle in a humane manner.	Board has furnished the relevant information to Appellant in time. Since the requisite information has been furnished without delay the Appeal is accordingly disposed of
10.	CIC/ AWBIC/C/ 2024/ 617049	30.01.2024	28.02.2024	1. The copies of the directions in regard to the Sidharth Malhan matter is not available 2. The copies of the action taken letters in the matter of Ghazipur Slaughter House, forwarded to the Government of Delhi is attached	This appeal has been presented by shri Naresh Kadyan for not furnishing information by CPIO of AWBI. In this regard, it is stated that the CPIO of AWBI has furnished the reply online on 28.02.2024 I have read the contents of the Appeal; RTI original application of the Applicant and also the records of the matter presented before the undersigned The information sought was provided online on 28.02.2024. However, it is informed that CPIO can provide those information which is on record and not supposed to issue clarification or create a document for the purpose of providing information. The Appeal stands disposed off.
11.	CIC/ AWBIC/C/ 2024/ 618356	16.02.2024	13.03.2024	1- It is informed that the elephants are protected under Wildlife Protection Act. 1972. The Central Zoo Authority is authorized to issue registration of Wild Animals used under Section 38H of the said Act. AWBI had registered the elephants as performing animal under Rule 7(2) of the Performing Animals (Registration) Rule 2001 based on the Prior registration of Section 38H of the WIPA 1972. Further it is stated that all the elephants which were	This appeal has been presented by shri Naresh Kadyan for not furnishing information by CPIO of AWBI. In this regard, it is stated that the CPIO of AWBI has furnished the reply online on 13.03.2024. I have read the contents of the Appeal; RTI original application of the Applicant and also the records of the matter presented before the undersigned. The information sought was provided online on

				registered under Section 38H were cancelled by the CZA in 2016. Presently there are no elephants registered with the circus as on date. 1 and 4 - As on date, 6 Circuses are registered with the AWBI. The details of animals are attached. 3- No circus is registered with AWBI under Performing Animal Rules, 1973 as on date. 2 and 5- The information sought has not been maintained.	13.03.2024. However, it is informed that CPIO can provide those information which is on record and not supposed to issue clarification or create an document for the purpose of providing information. The Appeal stands disposed off.
12.	CIC/ AWBIC/C/ 2024/ 619488	25.02.2024	13.03.2024	The information sought regarding the Annual Reports of AWBI is available in the website - www.awbi.gov.in The staff details are also uploaded and available in the website - www.awbi.gov.in	The information communicated by the CPIO is in order. The information sought under the application is available in the Public Domain. The applicant should ask for the specific information against the schedule prepared by AWBI. The Applicant may also inspect the record personally with the prior intimation to the CPIO before the 5 working days. Hence, the appeal stands disposed off.
13.	CIC/ AWBIC/C/ 2024/ 621161	02.03.2024	27.03.2024	The information sought by the applicant is not clear. The applicant to seek information on the specific questions so as to enable the Board to provide the information.	I have gone through the Appeal Submitted by the Applicant. It is observed that the information sought is vague in nature. Further, this information is not maintained at the office of the AWBI. Hence, the Appeal stands disposed off.
14.	CIC/ AWBIC/C/ 2024/ 621162	02.03.2024	28.03.2024	1 and 2. This is a statement of facts and no information is sought in this question. 3. The letter dated 16.6.2020 is not available with the Board. 4. The information sought is not available with the Board.	The appeal filed by shri Naresh Kadyan has been examined. The CPIO cannot provided information which is not maintained AS RECORDS. The CPIO has provided the information as available with him. Hence, no more information can be made available to the applicant.

				5. Dr. S.K. Dutta, is not an employee of the AWBI handling the charge of AWBI. Thus, the same is not available with the Board. The details of the property of Prachi Jain and Bharat are as below – 1.Prachi Jain - 1 flat in Delhi 2. Bharat - 1 land in Vellore, TN 6 and 7. The information sought is beyond the retention period.	Therefore, the appeal stands disposed off.
15.	CIC/ AWBIC/C/ 2024/ 622229	24.04.2023	18.05.2023	1 and 2- The details of grant-in-aid released to the recognized Animal Welfare organizations including Gaushalas for welfare of stray and abandoned animals in the last five years is attached. 3 and 4- The information sought is not available with the Board. 5- The AWBI regularly issue advisories and circular to the concerned Government department, Animal Welfare Organisations and others for proper implementation of PCA Act, 1960 and Rules made their under with the view of preventing unnecessary pain or suffering to animals generally and to uphold the 5 freedoms of the animals including Bulls referred by the Supreme Court of India. In addition to the above, the AWBI regularly advises Central Government for amendment of existing Rules and other issues pertaining to the animal welfare to prevent unnecessary pain or suffering to the animals. The AWBI also forward the complaints of cruelty and grievance to the State	This appeal has been presented by shri Naresh Kadyan for not furnishing information by CPIO of AWBI. In this regard, it is stated that the CPIO of AWBI has furnished the reply online on 18.05.2024 I have read the contents of the Appeal; RTI original application of the Applicant and also the records of the matter presented before the undersigned. The information sought was provided online on 18.05.2024. However, it is informed that CPIO can provide those information which is on record and not supposed to issue clarification or create an document for the purpose of providing information. The Appeal stands disposed off.

				Governments to take action against the offenders for violation of PCA, Act, 1960 as per law. The Board had issued a circular letter dated 14.08.2020 to Chief Secretary and Director General of Police of all the State Governments and UTs regarding harassment to the people showing compassion to animals, also to take matter pertaining to the proper implementation of PCA, Act, 1960. The AWBI is also regularly coordinating with the association or bodies established for the purpose of preventing unnecessary pain or suffering to animals or for the protection of animals and birds. Also, conduct training programs for Honorary Animal Welfare Representatives. The Board also conducts Humane education programs.	
16.	CIC/ AWBIC/C/ 2024/ 623205	14.03.2024	13.04.2024	The information sought is not available with the Board. The CPIO can provide those information which are on record and not supposed to create any document for the purpose of providing information. Hence, the RTI request is not in accordance with the Section 2 f of the RTI Act, 2005. Hence, the information sought cannot be provided.	The appeal filed by shri Naresh Kadyan has been examined. The CPIO cannot provided information which is not maintained AS RECORDS. The CPIO has provided the information as available with him. Hence, no more information can be made available to the applicant. Therefore, the appeal stands disposed off.
17.	CIC/ AWBIC/C/ 2024/ 623206	14.03.2024	12.04.2024	The information sought regarding the present status of AWOs of AWBI is available on the public domain and the same can be obtained from the AWBI website: www.awbi.gov.in . The copy of the letter inviting Shri Gautam Grover as special invitee is not clear. The applicant is	The undersigned has examined the appeal file by the applicant. . The CPIO can provide those documents or those information which is available on record. The CPIO not supposed to create information as per the provision of the Act. Hence, The CPIO has provided the information as available with

				requested to provide exact date of the meeting for providing the information. The details of the TA/DA reimbursed to Dr. Sandeep Jain and Dr. S.K. Mittal during the last five years is attached. Moreover, it is informed that the copy of the degree of Dr. S.K. Mittal is not available with the Board	him. the appeal stands disposed off.
18.	CIC/ AWBIC/C/ 2024/ 623207	15.03.2024	13.04.2024	The list of financial assistance released along with the status of Utilization Certificate pending in respect of the recognized animal welfare organizations under the Scheme of Regular Grant, Rescue Cattle Grant, Shelter Grant, Ambulance Grant, ABC grant and Natural Calamity grant is available on public domain and is available in AWBI website.	The appeal filed by shri Naresh Kadyan has been examined. The CPIO cannot provided information which is not maintained AS RECORDS. The CPIO has provided the information as available with him. The Board is implementing the schemes since 2004. Therefore, the information sought is beyond the retention period i.e. 20 years. If the applicant identify the specific information, the same can be provided if it is available
19.	CIC/ AWBIC/C/ 2024/ 623210	16.03.2024	13.04.2024	The list of financial assistance released along with the status of Utilization Certificate pending in respect of the recognized animal welfare organizations under the Scheme of Regular Grant, Rescue Cattle Grant, Shelter Grant, Ambulance Grant, ABC grant and Natural Calamity grant is available on public domain and is available in AWBI website. The list of financial assistance released along with the status of Utilization Certificate pending in respect of the recognized animal welfare organizations under the Scheme of Regular Grant, Rescue Cattle Grant, Shelter Grant, Ambulance	The appeal filed by shri Naresh Kadyan has been examined. The CPIO reply is in order. As the information sought is available in Public Domain. So far camel is concerned, the CPIO has provided the information which is maintained on record. The CPIO cannot clarify any issue or policy intervention under RTI Act,2005. Accordingly, the Appeal stands disposed off.

				Grant, ABC grant and Natural Calamity grant is available on public domain and is available in AWBI website. The Camel Transportation Rules are under consideration of the Government. The Board has not given any performing animals registration certificate of the Camels to Jumbo Circus and Great Indian Circus.	
20.	CIC/ AWBIC/C/ 2024/ 623211	15.03.2024	17.04.2024	The information sought regarding the Annual Reports of AWBI is available in the website www.awbi.gov.in. The staff details are also uploaded and available in the website www.awbi.gov.in. This information was already provided in RTI No. AWBIC/R/E/24/00028 on 13.03.2024.	regarding the Annual Reports of AWBI is available in the website www.awbi.gov.in. The staff details are also uploaded and available in the website www.awbi.gov.in. This information was already provided in RTI No. AWBIC/R/E/24/00028 on 13.03.2024. The appeal filed by shri Naresh Kadyan has been examined. The CPIO reply is in order. As the information sought is available in Public Domain. Regarding verification of records, the applicant to indicate the specific record to be verified for which he may visit the office with prior intimation to the CPIO in advance (before 5 working days). Hence, the appeal is disposed off.
21.	CIC/ AWBIC/C/ 2024/ 625652	20.03.2024	17.04.2024	The information sought regarding ban on dangerous dog breeds is not available with the Board. The same may be obtained directly from Department of Animal Husbandry and Dairying. The information regarding agenda and minutes - approval of PASC related to 6 circuses is not maintained specifically.	The appeal filed by shri Naresh Kadyan has been examined. The CPIO reply is in order. The CPIO can provided the information which is available on record. The CPIO cannot create information. Hence, the information provided are sufficient. The appeal stands disposed off.

				The application and other details of the circuses are the third party information and can only be provided on receipt of information from the concerned circuses No specific details of the complaint were mentioned, hence, unable to provide information. Information sought regarding omitting camel as performing animals is not available. Information sought regarding statement claimed by BSF is not available with the Board. The information sought regarding Prevention of Cruelty to Animals (Animal Husbandry Practices and Procedures) Rules, 2023 is not available with the Board. The same may be obtained directly from Department of Animal Husbandry and Dairying.	
22.	CIC/ AWBIC/C/ 2024/ 625881	03.04.2024	01.05.2024	1 to 3, 5 to 14- The information sought is not available with the Board. 4. The matter regarding Prevention of Cruelty to Animals (Transport of Animals) Rules, 2020 is under consideration in the Ministry	The appeal filed by shri Naresh Kadyan has been examined. The CPIO reply is in order. The CPIO can provided the information which is available on record. The CPIO cannot create information. Hence, the information provided are sufficient. The appeal stands disposed off.
23.	CIC/ AWBIC/C/ 2024/ 634234	23.05.2024	22.06.2024	Ans 1 to 9 - The information sought is not available with the Board. The CPIO can provide only those information which are on record and not supposed to create any document for the purpose of providing information. The Animal Welfare Board of India has issued several advisories and circulars regarding the implementation of the Prevention of Cruelty to	The appeal filed by shri Naresh Kadyan has been examined. The CPIO reply is in order. The CPIO can provided the information which is available on record. The CPIO cannot create information. Hence, the information provided are sufficient. The appeal stands disposed off.

				Animals Act 1960 and its Rules and the same are available in the website www.awbi.gov.in	
24.	CIC/ AWBIC/C/ 2024/ 635380	24.05.2024	23.06.2024	Ans 1 The applicant has not provided any specific period of information sought. Hence the information sought is vague and not clear Ans 2, 6, 7, 8, and 11- The information sought is not available with the Board. The CPIO can provide only those information which are on record and not supposed to create any document for the purpose of providing information. Hence the RTI request is not in accordance with the Section 2f of the RTI Act 2005. Ans 3 The legal fees provided to Shri Arun Gosain, Advocate on record is enclosed. No TA and DA was paid in this matter. Ans 4 AWBI is respondent in all the 44 cases and has not filed as petitioner. Furthermore the information sought is not available with the Board. The CPIO can provide only those information which are on record and not supposed to create any document for the purpose of providing information. Ans 5 The information is under consideration with the Ministry. No TA and DA was paid in this matter. Ans 9 The information sought is not available with the Board. The same may be available with the Department of Animal	The undersigned has examined the appeal file by the applicant. The CPIO can provide those documents or those information which is available on record. The CPIO not supposed to create information as per the provision of the Act. Hence, The CPIO has provided the information as available with him. the appeal stands disposed off.

				Husbandry and Dairying Ans.10 The information sought is vague and not clear. However it is informed that the Board has not delegated any power under the Prevention of Cruelty to Animals Slaughter House Rules 2001 as amended in 2010. HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH - MOGWLIAIDN SHREYA PAROPKARI and ORS. VS. STATE OF PUNJAB and Ors 1. CIVIL WRIT PETITIONPUBLIC INTEREST LITIGATION NO. 190 of 2021 2. CWP14172-2022 3. CWP14203-2022 4. CWP14204-2022 5. CWP14334-2022 6. CWP14344-2022 7. CWP14349-2022 8. CWP14354-2022 9. CWP14681-2022 10. CWP14683-2022 11. CWP14714-2022 12. CWP14723-2022 13. CWP14731-2022 14. CWP14767-2022 15. CWP15340-2022 16. CWP15343-2022 17. CWP15344-2022 18. CWP15366-2022 19. CWP15375-2022 20. CWP15391-2022 21. CWP15394-2022 22. CWP15899-2022 23. CWP15913-2022 24. CWP15923-2022 25. CWP15924-2022 26. CWP15931-2022 27. CWP15941-2022 28. CWP15953-2022 29. CWP15956-2022 30. CWP15974-2022 31. CWP16015-2022 32. CWP7054-2022 33. CWP14436-2022 34. CWP14444-2022 35.	
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				CWP14456-2022 36. CWP19610-2022 37. CWP14460-2022 38. CWP19607-2022 39. CWP21194-2022 40. CWP21250-2022 41. CWP21261-2022 42. CWP21263-2022 43. CWP22576-2022 and 44. CWP21453-2022	
				The information has already been provided in RTI No. AWBIC/R/E/24/00069	The undersigned has examined the appeal file by the applicant. The CPIO can provide those documents or those information which is available on record. The CPIO not supposed to create information as per the provision of the Act. Hence, The CPIO has provided the information as available with him. the appeal stands disposed off.
25.	CIC/ AWBIC/C/ 2024/ 640159	23.06.2024	22.07.2024	The Board has forwarded the recommendations for inclusion of adequate animal protection provisions including Bestiality in Bharatiya Nyaya Sanhita, 2023 vide letter dated 30.10.2023 and 20.12.2023 to the Ministry. The copies of the same is enclosed.	This appeal has been presented by shri Naresh Kadyan for seeking information on inclusion of Bestiality in the BNS,2023 in respect of the RTI No. AWBIC/R/E/24/00082 dated 23.06.2024. In this regard, it is stated that the CPIO of AWBI has furnished the reply that letter dated 30.10.2023 and 20.12.2023 were sent to the Ministry of INCLUSION OF Bestiality vide letter dated 22.07.2024. I have read the contents of the Appeal; RTI original application of the Applicant and also the records of the matter presented before the undersigned. The information sought was provided vide letter dated on 22.07.2024. However, it is informed that CPIO can provide those information which is on record and not supposed to issue clarification or create an document for

					the purpose of providing information. The Appeal stands disposed off.
26.	CIC/ AWBIC/C/ 2024/ 647154	05.08.2024	02.09.2024	Ans.1. The information sought regarding PFA Haryana is not clear as there is no organisation recognised in the name of PFA Haryana. However, there are 9 organisations recognised by the Board under the name of PFA or People for Animals in the State of Haryana. The details of the organisation are available in the website of the Board. Ans.2. The information sought is not maintained by the Board.	This appeal has been presented by Shri Naresh Kadyan seeking information related to camel transportation on respect of RTI No. AWBIC/R/E/00103 dated 05.08.2024. In this regard, it is stated that the CPIO of AWBI has furnished the reply to RTI through online dated 02.09.2024. I have read the contents of the Appeal; RTI original application of the Applicant and also the records of the matter presented before the undersigned. The information sought was provided online dated on 02 .09.2024. However, it is informed that CPIO can provide those information which is on record and not supposed to issue clarification or create an document for the purpose of providing information. The Appeal stands disposed off.

Decision:

30.The Commission after adverting to the facts and circumstances of the cases, hearing both the parties and perusal of the records, notes that in all the matters except two cases, listed today satisfactory replies are found to have been provided by the CPIO and same were also upheld by the FAA as came out from the copies of FAA order available as mentioned above and from the written submission of the respondent. The Commission also notes that some of the RTI applications seeking information about the rules made for different animals etc, are filed by the Complainant before the AWBI despite knowing the concerned authority and custodian of the information.

Further, taking note of the submissions made by the respondent CPIO, the Commission observes from the contents of the RTI applications in some cases, information sought is not found to be specific and, in some cases, information sought does not fall within the scope of “information” under section 2(f) of the RTI Act, 2005.

However, the Commission also notes that in Case no. 621162, the information sought by the Complainant was wrongly denied vide reply dated 28.03.2024 and CPIO reply was also upheld by the FAA vide order dated 10.05.2024. The Commission notes that the CPIO had failed to properly examine the contents of the RTI application in its entirety. The reply furnished by the CPIO appears to have selectively responded without adequately dealing with the specific request for certified copies of records. Further, with respect to Point No. 5 of the RTI application in case no. 621162, information sought in respect of Shri S.K. Dutta, the Commission notes that the information, if not available with the respondent, was required to be transferred to the custodian CPIO, under Section 6(3) of the RTI Act, which was not done by the respondent CPIO. The failure to do so reflects lack of due diligence on the part of the then CPIO.

In case no. 625881, the Commission notes that the reply furnished by the respondent CPIO on 01.05.2024 is general in nature and does not adequately address the specific queries raised by the Complainant.

The Commission also notes that while the complainant has filed complaint in all these 26 cases, however, no specific prayer and ground for making complaint is found to have been made. However, during the hearing, he prayed for proper replies and inspection of the records in all cases and furnishing of hardcopies of CPIO reply and FAA order in all the 26 matters.

Complaints filed in the Commission are dealt under section 18 read with section 20 of the RTI Act, 2005. Further, for taking action under section 20 of RTI Act, malafide intention must be proved by the complainant on the part of respondent. The Commission would like to place reliance on the case of Col. Rajendra Singh v. Central Information Commission and Anr. WP 5469 of 2008 dated 20.03.2009 wherein it was held as under:

"Section 20, no doubt empowers the CIC to take penal action and direct payment of such compensation or penalty as is warranted.

Yet the Commission has to be satisfied that the delay occurred was without reasonable cause or the request was denied malafidely."

In the present cases, the Commission is of the view that no *malafide* intention is observed on the part of the respondent CPIO, as CPIO replies within time frame are found to be on record.

While the complainant during his oral submissions has prayed for furnishing of information, the Commission notes that in complaint under section 18 of the RTI Act, 2005, no information can be provided, as for seeking information appropriate remedy lies in section 19 of RTI Act. The Commission would like to place reliance on the case of *Chief Information Commr. & Anr vs State Of Manipur & Anr* on 12 December, 2011 wherein it was held as under: -

".....Therefore, the procedure contemplated under Section 18 and Section 19 of the said Act is substantially different. The nature of the power under Section 18 is supervisory in character whereas the procedure under Section 19 is an appellate procedure and a person who is aggrieved by refusal in receiving the information which he has sought for can only seek redress in the manner provided in the statute, namely, by following the procedure under Section 19. This Court is, therefore, of the opinion that Section 7 read with Section 19 provides a complete statutory mechanism to a person who is aggrieved by refusal to receive information. Such person has to get the information by following the aforesaid statutory provisions. The contention of the appellant that information can be accessed through Section 18 is contrary to the express provision of Section 19 of the Act. It is well known when a procedure is laid down statutorily and there is no challenge to the said statutory procedure the Court should not, in the name of interpretation, lay down a procedure which is contrary to the express statutory provision."

However, the Commission further notes that during the course of hearing, both parties mutually agreed for inspection of records in the two RTI applications, preferably on 12.05.2026, for which the respondent CPIO will serve due notice for inspection of records, in respect of the RTI applications in case no. 621162 and 625881.

The Commission also notes that during the hearing, the Complainant appeared to be technologically proficient, as he used a laptop to argue

in the multiple matters listed for the hearing. In this context, his request for seeking hard copies of the CPIO's replies and FAA orders is not found to be maintainable. However, keeping in view the fact that parties mutually agreed for allowing inspection of record in the above two cases, the Commission directs the respondent CPIO to provide hard copies of CPIO reply and FAA order in these 26 cases.

The Commission also notes that apart from the 32 complaints listed today for hearing, 47 complaints against the same respondent public authority are still pending with this bench and 595 cases by the same complainant has already been disposed of by different benches of the Commission. Moreover, the Commission would like to place its reliance to the OM No.1/18/2011-IR of DoP&T dated 16.09.2011 and the judgment pronounced by Hon'ble Supreme Court of India in case of CBSE and Anr. Vs. Aditya Bandopadhyay & Ors. Civil Appeal No. 6454/2011 wherein it was held as under:

"The nation does not want a scenario where 75% of the staff of public authorities spends 75% of their time in collecting and furnishing information to applicants instead of discharging their regular duties. The threat of penalties under the RTI Act and the pressure of the authorities under the RTI Act should not lead to employees of public authorities prioritising 'information furnishing' at the cost of their normal and regular duties."

Notwithstanding the above, the Commission directs the respondent CPIO to submit a written explanation before the Commission clearly stating the reasons for failure to properly examine and transfer the RTI application under Section 6(3) with respect to Point No. 5 in case No. 621162; and for furnishing vague and non-specific reply in Case No. 625881. The written explanation shall be submitted to the Commission within 30 days from the date of receipt of this order.

The Commission also takes note of the submissions of the Complainant that the official website of the AWBI is not duly updated and continues to reflect outdated details, including its administrative control under the Ministry of Environment, Forest and Climate Change, despite the fact that it has been functioning under the Ministry of Fisheries, Animal Husbandry and Dairying. The Commission also takes note of submissions made by the respondent CPIO that they are taking steps to rectify this issue. The Commission is of the view that such lapse is against the mandate of Sections 4(1)(a) and 4(1)(b) of the RTI Act, 2005, which cast

a statutory obligation upon public authorities to maintain records properly and to ensure accurate and timely dissemination of information.

Recommendation under Section 25(5) of the RTI Act, 2005

Accordingly, the Commission in exercise of its powers under Section 25(5) of the RTI Act, 2005, recommends to the Public Authority of Animal Welfare Board of India, to undertake a review of its official website and records available on it and ensure that all organizational and administrative details are correctly reflected and in conformity with the current position.

The Commission further recommends to the Public Authority of the Ministry of Fisheries, Animal Husbandry and Dairying, being the administrative Ministry, to properly disclose the information on AWBI on its web portal and get it deleted from the web portal of the Ministry of Environment, Forest and Climate Change.

Copy of this order to be endorsed to the Secretary, Department of Animal Husbandry and Dairying and to the Secretary, Ministry of Environment, Forest and Climate Change, for their information and necessary action.

With the above observations and direction, the instant matters are disposed of.

Sd/-
SANJEEV KUMAR JINDAL (संजीव कुमार जिंदल)
Information Commissioner (सूचना आयुक्त)
date: 08.05.2026

Authenticated true copy
(अभिप्रमाणित सत्यापित प्रति)
(SK Chitkara)
Dy Registrar
011- 26107051

Addresses of the Parties:

1. CPIO

Animal Welfare Board of India,
Ministry of Fisheries, Animal Husbandry And Dairying,
NIAW Campus, 42 Mile Stone,
Delhi-Agra Highway, NH-2,
Ballabgarh,
Haryana-121004

2. The Secretary,

Animal Welfare Board of India,
Ministry of Fisheries, Animal Husbandry And Dairying,
NIAW Campus, 42 Mile Stone,
Delhi-Agra Highway, NH-2,
Ballabgarh, Haryana-121004

3. Mr. Naresh Kadyan

Copy to:-

The Secretary,
Department of Animal Husbandry and Dairying
Room No. 218, Krishi Bhawan,
Dr. Rajendra Prasad Road, Central Secretariat,
New Delhi, Delhi 110001

Copy to:-

The Secretary
Ministry of Environment, Forest and Climate Change
Indira Paryavaran Bhawan,
Jorbagh Road, New Delhi – 110003

Recomendation(s) to PA under section 25(5) of the RTI Act, 2005:-

Nil